ADMINISTRATIVE REVIEW TRIBUNAL

Brisbane Registry – Nos. 2023/3361; 2023/3363; 2023/4494

Between
Vida Reid (Applicant, 2023/3361)
Simon Reid (Applicant, 2023/3363)
Forward Focused Group Pty Ltd (Applicant, 2023/4494)
and
Commissioner of the NDIS Quality and Safeguards Commission (Respondent)

APPLICANT (VIDA REID) – REPLY SUBMISSIONS

In response to the Respondent's Submissions pursuant to orders of Deputy President K McMillan KC dated 8 September 2025

Introduction

1. **Overview:** Ms Vida Reid (the Applicant) submits this response to the Respondent's submissions opposing her stay application at the ART. This reply focuses strictly on procedural and process-based issues, as directed, and **does not engage with the merits or truth of the underlying allegations**. The Applicant contends that the Respondent's approach improperly seeks a de facto merits determination of disputed allegations (such as fraud or harassment) as a precondition to relief, whereas the **Tribunal's task at this interlocutory stage is to address clear **procedural flaws** in the decision-making process. The Applicant maintains that the banning order against her should be stayed – and ultimately set aside – **on the basis of those procedural flaws alone**, without the Tribunal needing to find the truth of contested accusations.

2. **Procedural Posture:** These submissions are confined to process issues pertaining to Ms Reid's matter (AAT 2023/3361). The Applicant **also renews her request that her review be heard separately from that of Mr Simon Reid**, given the distinct procedural histories and factual matrices of their respective banning orders (see Section IV below). The Commission itself issued and reviewed the two banning orders in **separate proceedings**, involving different evidence and allegations for each individual. It would be unfair and inefficient to conflate them.

3. **Stay Relief Sought:** The Applicant seeks an **interim stay of the procedings** (and any related enforcement of that order) pending the final determination of her ART review. The applicant emphasizes that this request is made to prevent further prejudice from procedural irregularities and **not** to delay the proceedings. Indeed, it was the Respondent who previously sought to delay merits review in

light of external investigations – a stance it has now inexplicably reversed. In any event, the Tribunal can and should grant a stay based on the serious procedural deficiencies identified, without delving into a **premature merits inquiry** on the allegations themselves.

A. Overview and relief maintained

1. These submissions reply to the Respondent's document dated 17 September 2025. The Applicant maintains the relief set out in her **Application for Stay of proceedings and Severance** filed 16 August 2025, namely:
   (a) a narrowly-tailored **stay of proceedings** to protect procedural fairness pending clarification of whether any **parallel law enforcement in the/at the request of/considered part of NDIS Taskforce or related investigative activity** (across all relevant agencies) remains on foot that could prejudice these proceedings; and
   (b) **severance** so that matter **2023/3361** is heard separately from **2023/3363** (Mr Simon Reid) and **2023/4494** (FFG), given distinct issues, conflicts and given **President K McMillan KC states during last hearing on 5th September 2025** that I am not able to make any decisions for FFG as Mr.Simon Reid is the current listed Director , and demonstrable prejudice in a joint hearing to a self-represented party.
2. The Respondent's submissions mischaracterise both heads of relief and mischaracterise my application under s 41 of the *AAT Act*. I do not seek an indefinite adjournment of the substantive proceedings. My application is for a **protective stay of proceedings**, strictly limited until two fairness issues are resolved:
   (a) confirmation of whether parallel investigative activity is ongoing across government agencies, and
   (b) clarification and safeguards regarding the Respondent's statement of " No investigations"
3. The Applicant does **not** seek an indefinite adjournment of the "substantive proceedings"; she seeks protective, time-limited case-management orders to ensure a fair hearing.
4. The applicant also seeks **severance** of my matter (2023/3361) from Simon Reid and FFG, to avoid structural prejudice from joint proceedings.

B. Mischaracterisation of the stay as an "adjournment of the substantive proceedings"

1. **No Determination of Allegations at Stay Stage**

1.1 The Respondent's submissions wrongly suggest that the Tribunal must determine, or at least weigh, the truth of the serious allegations against

Ms Reid (e.g. fraud and harassment) before it could grant a stay of proceedings and/or ultimately set aside the banning order. The Applicant strenuously opposes this framing:

1.2 1nterlocutory Nature of Stay: A stay of proceedings application is not a forum to decide contested facts. Its purpose is to preserve rights and the status quo until the full review can be conducted. Requiring the Tribunal to effectively pronounce on Ms Reid's guilt or innocence at this preliminary stage would convert the stay hearing into a de facto trial, which is inappropriate and prejudicial. The Tribunal can decide whether to suspend the operation of the proceedings by looking at factors such as the arguable case on review (prima facie case) and the balance of convenience, rather than resolving factual disputes on alleged misconduct.

1.3 The Respondent recasts the Applicant's request as an application of stay of proceedings to "adjourn" the merits. That is wrong in substance and effect. The stay sought is **conditional and protective**: it pauses only so long as is reasonably necessary for objective clarification of parallel investigative risk and for minimal fairness safeguards following a conceded privacy/confidentiality mishandling.

1.4 The Respondent says there is "no automatic right" to a stay of proceedings and relies on authorities about civil proceedings continuing alongside criminal processes. The applicant's point is different: **where real prejudice to fairness is reasonably apprehended**—because investigative activity may still be alive (beyond a single agency), and because a serious privacy/confidentiality breach has undermined equality of arms—a short, structured stay is the orthodox mechanism to protect the integrity of the Tribunal's process and fair justice.

1.5 The Respondent argues the Applicant can simply claim privilege against self-incrimination "at the hearing". That elides the distinct prejudice here: the **chilling** of a self-represented party's ability to present her case fully and fearlessly while unresolved investigative shadows persist. Privilege is a shield to specific questions; it is **not** a cure-all for systemic unfairness arising from opacity about multi-agency activity and prior mishandling of her confidential materials.

C. The "no investigation" assurance is inadequate: NDIA ≠ the Fraud Fusion Taskforce

1.1 The Respondent points to an NDIA-only assurance. That does not answer the Applicant's central concern: the **NDIS Fraud Fusion Taskforce** involves **many agencies** beyond the NDIA. The **ABF stops, device seizures/retention and "flag" assertions** (including for family members) post-date the

dismissal of charges and objectively suggest ongoing government interest unrelated to the NDIA alone.

1.2 The Respondent says it is "not the Commission's responsibility" to obtain cross-agency clarity and that the Tribunal cannot require it. Respectfully, that is not the Applicant's contention. The submission is that **before compelling a self-represented litigant to proceed**, the Tribunal should exercise its **own** case-management powers to require **minimal sworn clarification** so the merits hearing does not unwittingly trespass upon, or prejudice, any live investigative process and so the Applicant is not chilled in the conduct of her case. This is squarely within the Tribunal's protective function.

2. To avoid any spectre of indeterminate delay, the Applicant proposes **clear guardrails**:

2.1 The ART and Deputy President K McMillan KC demand the Respondent file an **affidavit** identifying the agencies to whom enquiries were made (including AFP, ACIC and ABF) and all government agencies who are collectively part of the NDIS TASK FORCE , the **questions asked**, and the **answers received**, and stating whether there are any parallel law-enforcement/investigative activity relating to the subject-matter of these applications.

3. The Australian Border Force directive – affidavit required

3.1 My affidavit (January 2025) records that on 25 September 2024 at Perth Airport, ABF officers, including but not limited to **Julian** detained my family and I ; and told us that "The NDIS, NDIS Commission and the NDIS Minister have asked us to search you every time you enter or leave the country."

3.2 This was not speculation or hearsay. It was a direct statement from an identified ABF officer (Julian) whose name appears in my materials before the Tribunal and his other colleagues on shift on that date at Perth International airport (International departures).

3.3 The applicant therefore requests the ART exercises it's powers order and find particulars as to:

a. the basis for which the applicant and her family were detained, searched and had our property seized; and

b. with reference to s 186A of the Customs Act 1901, the basis for which the contents of our family electronic devices were searched and copied. In reference to the above, we refer to the decision of DPP (Cth) v Farmer (a Pseudonym) and Ors [2017] VSCA 292, in which Priest JA stated at [207]: "Recognising that the Customs Act 1901 is concerned with both the exaction of revenue and the control of prohibited or restricted matter, it is consistent with the purposes and objects of the Act, and with the ordinary

and natural meaning of the term, to conclude that export means taking goods out of Australia with the intention of landing them at some place beyond Australian territory. To that extent, export has connotations of a one-way journey of goods from Australia to an ultimate destination in another place outside Australia. Ordinarily, conveying the personal effects of a passenger — reading glasses, watch, wedding ring, wallet, camera and the like — from the country with no intention that they be landed in another, could not properly be described as an export of those personal effects. In the present case it could not accurately be said that there was any evidence that could justify the conclusion that the telephone accompanying Farmer on 14 April 2013 was to be landed in another country, let alone that it might attract duty, or that it was, or contained, prohibited goods. In my opinion, therefore, the telephone was not 'goods for export', and hence was not 'subject to the control of customs'. Accordingly, the officers' powers under ss186 and 186A were not engaged."

3.4 With reference to Farmer, please advise how the customs officers' apprehension, searching, and possible copying of our clients' devices falls within the scope of the Act. What breach of the Act or associated legislation were our family and I reasonably suspected to have committed?

3.5 Fairness requires that this officer and also the Australian Border Force be asked to **swear an affidavit** confirming:

(a) whether such a directive was given to him/ them and if it still exists,

(b) who requested or authorised it, and

(c) the legal/statutory basis for it.

(d) request video and voice recordings from the airport.

(e) request a written report explaining in detail their reasons for seizures.

(f) ART to order production of and obtaining from the ABF all emails and documents which lead up to and relate to our search, detainment and seizures of our electronic documents and bags.

(g) The ART to ask both the NDIS and the NDIS commission if a staff member by the name of John Maloney works for them in any capacity and what is their role.

(h) furthermore the ART to ask NDIS and NDIS commission as to why John Maloney was sent to Miss Virginie fanny-dullo's house to question her.

(I) The ART to request an affidavit from John Maloney explaining his conduct and reasons.

4. Video evidence – CCTV/recording of ABF stop

4.1 In addition, I respectfully request that the Tribunal **order production of the CCTV or other recording** of the 25 September 2024 stop.

4.2 This is imperative. The Respondent dismisses my account of ABF treatment as "complaints" or exaggeration. Video evidence will provide an objective record of what occurred and whether we were subjected to repeated detentions beyond lawful bounds.

4.3 The Tribunal's task is to conduct a full and fair review in order to make it's findings and fair decision. It cannot do so without seeing the evidence that goes to the heart of whether ongoing government instructions exist and whether my rights to a fair justice and hearing are being compromised while the ART is in charge and overseeing this matter.

4.4 This is not burdensome. It is required. It requires only that the Tribunal to exercise it's powers, through Deputy President McMillan KC or a member of it's staff it sees most fit to do so, write to ABF ordering the production and requesting the officer's sworn clarification and/or subpoena records to ensure fair justice.

4.5 The stay operates only until full transparency and clarity has been fulfilled

D. The Respondent's inconsistency and fairness: they sought a stay when it suited them

1.1 In 2023 the Respondent itself previously sought a stay because **AAT proceedings could prejudice criminal processes** (e.g., by witnesses giving evidence in the Tribunal). In submissions dated 29 November 2023, the Commission urged a halt to the AAT review on the basis that *"Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings"* and that *"The Tribunal must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings"*. In other words, the Respondent acknowledged that the Tribunal should **not delve into the substance of the allegations** while other processes were afoot. Although circumstances have since evolved (as discussed below), it remains fundamentally inconsistent – and unexplained – that the Respondent now insists the Tribunal do the **very thing it cautioned against**: determine the factual merits at the interlocutory stage. The Applicant submits that the Tribunal should reject this inconsistency and hold the Commission to its prior recognition that a **stay inquiry should not transform into a merits hearing**.

1.2 The respondent's position made sense then—and its logic still holds where **multi-agency interest remains opaque** and ABF actions continued **months after** charges were dismissed followed by investigators attending multiple individuals and ex staff members of FFG's homes in January 2025 not long ago. The Respondent offers no cogent justification for reversing its stance other than

a vague and narrow NDIA "assurance". That inconsistency undermines their credibility and falls short of their **Model Litigant obligations**.

1.3 **Untested Allegations:** The allegations against the applicaant Ms Reid remain **untested and unproven** to date. In fact, the primary **fraud charges** initiated by the NDIA against her were **dismissed on or about 23 February 2024 for want of prosecution**. Likewise, the Commission's assertions of *"veiled and direct threats, bullying and harassment"* by Ms Reid toward NDIS participants have never been adjudicated in any court or tribunal. They are **disputed assertions**, forming part of the Commission's reasoning for the ban but **not established facts**. It would be **highly improper for the Tribunal to assume the truth of these allegations** or require Ms Reid to disprove them at this stage. Doing so would essentially **reverse the onus**, treating her as culpable unless she can prove otherwise – a notion foreign to both the presumption of innocence and the merits-review function of this Tribunal. Instead, the correct approach is to acknowledge that Ms Reid has raised **serious questions** about the legality and fairness of the process (as detailed in Section II below), which is sufficient to justify a stay **without any need to find facts on the allegations**.

1.4 Consistency in public administration matters. A **Model Litigant** does not oppose protective case-management that it previously championed on materially connected facts. The Applicant seeks no tactical advantage—only the same caution the Respondent invoked when doing so suited its litigation posture.

1.5 In summary, the Tribunal should **focus on the process-based grounds** of Ms Reid's application and **not entertain the Respondent's invitation** to determine whether Ms Reid *"really"* engaged in fraud or harassment. Those issues, if they remain relevant at all, are for a later stage or other fora. For the purposes of the stay and the AAT's eventual review, the **procedural invalidity of the decision-making is the central issue**.

E. Procedural Flaws in the Commission's Decision and Variation

The Applicant's case on review is that the banning order (and its subsequent "variation") are invalid or should be set aside **due to fundamental procedural flaws**, irrespective of the underlying facts. For the ART to conclude this it first needs to ensure fair justice and to approve a stay of proceedings in favour of the applicant. The Respondent's submissions tellingly **fail to engage with these flaws**, instead conflating process with merits. We address three key procedural issues in turn:

1. Lack of Procedural Fairness (Denial of a Fair Hearing)

The original decision-making process was tainted by a denial of procedural fairness. Ms Reid was not afforded a genuine opportunity to know and respond to the case against her before the Commission made its banning order. In particular:

1.1 **Inadequate Disclosure:** The Commission failed to provide Ms Reid with full and timely disclosure of the allegations and evidence it was relying on prior to imposing the ban including it's letters reaching the applicant after their descison had already been made. Example attached below in document provided by Australia Post – The banning order was not received by us at all.

1.2 Intention to Ban notice was dated 17th November 2022 and it with deadline to respond by 30th November 2022 BUT it was only delivered by Australia post on 23rd December 2022 at 10:44 am with time to respond already passed and also handed to an ex FFG staff member walking out and leaving. However we did not get this letter from the staff member who at the time no longer worked for us. We only found out about the Banning order later when it went online publicly on the commissions website and on the news and social media platforms that we are now banned alongside our entities on or about 24th December 2022.

1.3 As noted in the materials, the Commission did not furnish the Applicant (or FFG, the provider involved) with critical evidence or particulars during the investigative stage. The Applicant was therefore **"unable to properly address any allegations"** and had no meaningful chance to make submissions on key points. This strikes at the heart of procedural fairness – a person must be told the substance of the case against them and given a chance to respond **before** adverse action is taken.

1.4 **No Opportunity to Respond:** Even when some limited information was eventually provided (e.g. just prior to internal review), the Commission effectively **ignored Ms Reid's response**. For example, when the Director of FFG (the organisation Ms Reid was associated with) provided a submission on 20 March 2023 addressing the scant information available, *"The Commission refused to give any weight to this submission."*. In Ms Reid's case, similarly, any representations she made were not properly considered. The outcome had an air of predetermination, as the Commission pressed ahead with the banning order without fair consideration of countervailing evidence or explanations. The **Statement of Reasons and Tender Bundle** reveal instances where exculpatory or contextual information (such as the eventual dismissal of criminal charges, or the circumstances of alleged incidents) were given minimal or no weight, suggesting a closed mind to anything beyond the Commission's own allegations.

2 **Breach of Statutory Procedure:** The Commission also breached procedural requirements in the **internal review** phase. Notably, the internal review decision for FFG (and by extension, Ms Reid's case) was delivered **outside the statutory timeframe** set by s 100(6A) of the NDIS Act. While the Respondent may argue this does not invalidate the decision (and the Applicant was permitted to file an AAT

application out of time), it exemplifies the Commission's **pattern of procedural lapse**. Combined with the above failures – lack of notice and failure to consider submissions – the process fell short of the **basic standards of procedural fairness** required of an administrative decision-maker.

2.1 The Respondent's stay submissions conspicuously **do not rebut these fairness concerns**. Instead of addressing whether Ms Reid was accorded natural justice, the Respondent centers on the **severity of her alleged misconduct**. This misses the point. However serious the allegations, the Commission was **bound to follow fair process** in making its decision. The Applicant will contend at the final hearing that it did not, and this Tribunal can **provisionally recognize the strength of that contention now**. Indeed, these procedural deficiencies themselves establish a **prima facie case** for setting the decision aside, which strongly supports granting a stay.

F. Improper Reliance on Variation Powers (Ultra Vires "Variation" under s 73ZO)

1. The next process issue concerns the Commission's use (or misuse) of its power to **vary** a banning order under s 73ZO of the NDIS Act. The Applicant submits that the Commission's actions in "varying" her banning order went **beyond a lawful variation and amounted to a new substantive decision without due process**.

1.1 Change of Grounds: The original banning order issued to Ms Reid on 20 December 2022 was expressly based on **one set of grounds** – reportedly under s 73ZN(2)(a)(i) of the Act, which relates to contraventions of the NDIS Act or Rules. However, on 21 April 2023, the Commission **characterized its internal review outcome as a "variation"** but in fact **switched the legal basis** of the ban to s 73ZN(2)(a)(iii), the "suitability grounds". This shift from an alleged rule breach to an assertion of general unsuitability **substantially broadened the scope of the banning order**. In practical terms, what had been a ban tied to specific conduct (e.g. an alleged fraud against the NDIS rules) was morphed into a ban premised on Ms Reid's overall character or fitness, and expanded to bar **any involvement in the NDIS sector in any capacity** (even indirect roles).

1.2 Circumvention of Safeguards: Such a fundamental change in the basis of the decision **could not lawfully be done under the guise of a mere "variation."** The Applicant maintains that this was in substance a **new banning order** dressed up as a variation – an act which circumvented the procedural safeguards and fairness that would ordinarily apply to a fresh decision. The Commission's own correspondence acknowledges that this *"appears to constitute a new decision rather than a genuine variation – potentially circumventing proper procedural protections."*. That acknowledgement (made in Ms Reid's letter to the Commission) is telling. By

switching grounds and enlarging the ban without restarting the decision-making process (e.g. issuing a new show-cause notice or giving Ms Reid a chance to respond to the new grounds), the Commission **abused the s 73ZO power**. Section 73ZO allows variations in certain circumstances, but it was not intended to permit a wholesale revision of the nature and rationale of a banning order, especially to the detriment of the affected person's rights.

2 **Lack of Clarity and Notice:** Even if the Commission had power to vary, the manner in which it did so was procedurally flawed. Ms Reid was notified of the Commission's *"Intention to take into account new information and vary the banning order"* only on 22 March 2023, with a very short deadline to respond by 5 April 2023. The "new information" in Attachment A concerned allegations of her involvement in another entity (Dream Big Employment Pty Ltd). The Commission then proceeded to implement the variation on 21 April 2023, presumably incorporating that new allegation. The Applicant submits that this process was rushed and failed to give her a **reasonable opportunity to gather evidence and respond** to the new, broadened allegations. Moreover, treating this as part of the internal review (rather than initiating a separate banning order on new grounds) denied Ms Reid the **procedural rights she would have had if a new ban were proposed** – such as a fresh notice under s 73ZN and a chance to respond specifically on the "suitability" issues in a proper timeframe. The internal review power should not be misused to engineer what is effectively a more sweeping ban without due process.

2.1 In summary, the Commission's approach to **varying** the decision under s 73ZO is a **major procedural flaw** that will be central to the Applicant's case. The Respondent's submissions on the stay application did not substantively address this point at all. By granting a stay, the Tribunal can ensure that Ms Reid is not forced to endure the effects of a **banning order tainted by an ultra vires variation**, pending the full review of this issue.

G. Failure to Disclose and Transparency Issues

1. Finally, one of the reasons the stay of proceedings at the ART should be approved is that the Applicant underscores the Commission's **failure to disclose material information** both during and after the decision-making process, which has compounded the procedural unfairness:

1.1 Withholding of Evidence: As noted earlier, the Commission did not disclose key evidence underlying its allegations (e.g. witness statements, investigative reports) at the time of the original decision. Even during internal review, disclosure was limited. It appears, for example, that the Commission had in its possession a *"sworn statement by Cassandra Burke dated 16 February 2023"* alleging Ms Reid's involvement in Dream Big, yet the Applicant has not been provided the full contents of that statement in these proceedings (aside

from references in the tender bundle). The **tender bundle and affidavit evidence** highlight that Ms Reid has had to piece together the case against her from disparate documents, and that some materials were only revealed through these AAT proceedings (e.g. transcripts of interviews with witnesses, internal emails). This piecemeal disclosure prejudices the Applicant's ability to respond and is a continuing procedural concern.

1.2 **Late and Redacted Disclosure:** Even the **"Decision Record"** or Statement of Reasons for the banning order was provided late. The Commission's **Notice of Internal Review Decision** (8 June 2023) in FFG's case candidly notes that the decision was made outside the statutory timeframe and appends some reasons. However, the narrative in those reasons is heavily based on allegations that were never put squarely to Ms Reid at the time. Additionally, certain correspondence suggests there was a **privacy breach** in how the Commission handled or disclosed information (mentioned by the Tribunal on 14 February 2025), further muddling what information has been properly shared. The Respondent has, to date, **failed to clearly disclose** whether there are ongoing investigations by any agencies – a point on which Ms Reid specifically sought clarification. Such opaqueness undermines confidence in the process and in the Commission's adherence to its **model litigant obligations**.

1.3 Ongoing investigations which appear to be still existing.

2 **Impact on Interim Relief:** The Commission's failure to be transparent should weigh **in favour of a stay** of proceedings, if not a stay of the banning order itself. When an applicant has made out an arguable case of procedural unfairness and there is indication of information asymmetry (the decision-maker holding back relevant information), tribunals lean toward preserving the status quo to prevent irreversible prejudice. Here, without a stay, Ms Reid continues to suffer the professional and personal consequences of a banning order that may well have been issued improperly. The Commission's opaque conduct – for example, making a **sweeping assertion that there is "no current criminal investigation" while evidence suggests ongoing interest by law enforcement** – only reinforces the need for caution. would ensure that no further injustice is done by enforcing a potentially unlawful decision, at least until the Tribunal can scrutinize the process fully.

H. No Reliance on Untested Allegations to Deny Stay of proceedings

To the extent the Respondent argues that the **seriousness of the allegations** against Ms Reid justifies refusing a stay of proceedings, the Applicant submits this is misconceived in law and fact. In **merits review proceedings**, particularly where **procedural validity** is in question, the seriousness of unproven allegations cannot override an applicant's right to a fair process:

- **Allegations Are Not Findings:** The Commission's allegations (fraud, improper control of funds, harassment of participants, etc.) remain **just that – allegations.** No court or tribunal has found Ms Reid guilty of fraud; to the contrary, the only criminal case brought was dropped. Claims of harassment or bullying have likewise not been tested or upheld by any neutral adjudicator. The Respondent cannot bootstrap these accusations into a presumption of risk that justifies maintaining the ban without scrutiny. The **AAT's role is to review the decision, not to endorse the allegations on faith**. Indeed, if the Commission's process was flawed, its findings and assertions flowing from that process are inherently unreliable. It would be paradoxical to let those very assertions (products of a flawed process) serve as the reason to deny interim relief.

- **Balance of Convenience:** In any event, the balance of convenience favors Ms Reid. She has now been under the **cloud of this banning order since late 2022 – a significant period during which her professional life has been effectively frozen.** She and her family have also endured distressing incidents (such as an airport detention prompted by an NDIA flag), Her daughter attempting suicide multiple occasions and being spat on at shopping centres when accompanied by her children as fallout from these unresolved accusations. Incluidng her severely disabled's non verbal son's ndis funding being slashed by more than 75% at the same time as these accusations painting a picture of NDIS and NDIS commission appearing to punish and abuse their powers even on an innocent disabled child with their extent of powers unchecked. The applicant also had her and her company's (FFG) Employment Services Federal tender taken away as a result of these unfound accusations. The applicant was also forbidden to say a final goodbye to her dying grandmother as a direct result of these allegations. The applicant has herself had a disability and diagnosis of Multiple sclerosis since or about 2008 and was an ndis particiant with all her supports stopping with and due to these allegations. If a stay is denied, the applicant will continue to suffer serious personal, reputational and economic harm while awaiting the outcome of the review, even though she has raised **substantial issues about the lawfulness of the ban and now substantial issues with moving forward with the hearing without a stay of proceedings and until there are full transparency and confirmation of whether or not there are still active investigations ongoing by the Faurd Fusion taskforce and the NDIS commission**. On the other hand, granting a stay of proceedings simply maintains the *status quo ante* by allowing the applicant Ms Reid (for example) to have a fair hearing in due time once clarity is achieved to ensure a right to fair justice and also for miss Reid to resume limited involvement in NDIS services pending the Tribunal's decision. The Respondent has not identified any *specific* risk of harm that would arise from Ms Reid's participation in the sector during

this interim period, apart from the generic invocation of the allegations themselves. Any theoretical risk can be mitigated by conditions if necessary (the Tribunal could, for instance, tailor the stay order to particular activities if there were genuine concern, though the Applicant maintains none is warranted given her compliance to date).

- **Public Interest:** The Applicant recognizes the public interest in safeguarding NDIS participants. However, the public interest is **not served by upholding a decision marred by procedural unfairness**. The NDIS regulatory regime itself emphasizes fairness, transparency, and rights of review. Allowing an arguably unlawful banning order to remain in force unchecked **undermines public confidence in the fairness of the system**. By contrast, a stay coupled with an expedited focus on the process issues will demonstrate the Tribunal's commitment to procedural integrity. If, after proper review, the ban (or a form of it) is found justified, the Commission can enforce it with renewed authority. But it should not be enforced in the interim on the basis of one-sided assertions that have never been proven.

Accordingly, the Tribunal should place **little weight on the Respondent's portrayal of the allegations as established facts**, and should reject any suggestion that Ms Reid must *prove her innocence* to obtain a stay. The **key consideration is the strength of her case on the process issues**, which is strong, and the relative hardship – which clearly favors preventing further harm to her until the matter is resolved.

I. Privacy/confidentiality mishandling and equality of arms

1 The Respondent trivialises the Applicant's privacy/confidentiality complaint as "not a matter for the Tribunal". Even if ultimate determination lies elsewhere, the p**rocedural consequences for fairness here and now are for this Tribunal**. A self-represented party's confidential materials were disseminated beyond what was proper; the Respondent admits forwarding them on. That has **practical impacts** on equality of arms, litigation strategy, and the Applicant's confidence to disclose and argue without inhibition.

2 The proportionate remedy is not complex: a brief protective stay coupled with **quarantine and disclosure directions**, e.g.:

3 The Respondent to file an affidavit identifying **to whom** the Applicant's materials were disseminated, **when**, and **for what purpose**;

4 A direction that those materials be **quarantined** from any non-party and not used **except** for the purposes of these proceedings; and

5 Any necessary **confidentiality/suppression** orders to restore a level playing field.

F. Severance is necessary to avoid concrete prejudice in a joint hearing

6 A joint hearing prejudices me as a self-represented litigant:

7 I face conflicts between my rights and Mr Reid/FFG's interests.

8 Evidence admissible against others risks contaminating the view of my separate case.

9 The applicant Miss Reid is disadvantaged logistically and procedurally in multi-party proceedings.

10 A stay of proceedings and Severance does not prevent efficiency. Evidence can be adopted across matters by transcript or document without compelling a joint trial.

11 The Respondent says overlap of issues/witnesses defeats severance. That puts efficiency ahead of justice and a right to a fair hearing. The Tribunal's task is to take the course **"most conducive to a just resolution"**, balancing efficiency **with** fairness. Here, specific prejudice from joinder has been clearly articulated:

12 (a) **Conflicts and testimonial dilemmas**: In a joint hearing, the Applicant's decision **not** to give evidence (or to confine issues) can trigger **adverse forensic consequences** for Mr Reid. That places the Applicant in an impossible position—testify (and expose herself unnecessarily) to protect someone else's case, or exercise her rights and **prejudice** him. Severance removes this coercive dynamic.

13 (b) **Distinct issues and timeframes**: The Applicant ceased as FFG director **before** certain events; her case includes **unique suitability/fairness points** (including a shift in statutory footing of her ban on internal review) that are **irrelevant** to Mr Reid/FFG. Joinder risks **contamination**—evidence admissible against one being psychologically (if not legally) weighed against the other.

14 (c) **Self-represented disadvantage in multi-party trial**: In a three-cornered contest, cross-examination sequencing, objections, and evidentiary rulings become exponentially harder for a self-represented person. That is not abstract; it is **structural prejudice**. Severance streamlines the Applicant's matter into a conventional two-party merits review she can meaningfully conduct.

15 Any efficiency concerns can be mitigated with **practical tools**:

16 Where appropriate, the Tribunal can **receive common factual evidence on the papers** and **adopt** it across proceedings, or have witnesses called **once** with transcript adopted in the severed matter(s);

17 Directions can ensure **no witness is needlessly recalled**, and any overlap is managed by **document use** rather than compelled joint trial.

18 The balance, properly struck, favours severance: the **prejudice to fairness** in a joint hearing is concrete; the **administrative inconvenience** of managing two to three shorter, cleaner hearings is modest and manageable.

J. The "we cannot have a stay of proceedings or remove the ban" point misses the fairness issue now

1. The Respondent says the Commissioner presently "has no power" to stay the proceedings or vary and/or remove the bans while review is on foot. Whether or not that is correct under the current ART scheme, it does not answer the Applicant's fairness point: the **internal review rationale** (which the Respondent holds) explicitly tethered unsuitability to pending criminal charges and ongoing investigations; those charges were **dismissed** well over a year ago. The Respondent's unwillingness to re-evaluate its position in light of that fundamental change is a **live fairness consideration** for this Tribunal when deciding whether protective case-management is warranted. It appears the NDIS Commission is playing a cat and mouse game and utilising the ART as a vehicle to not only manipulate justice but to prevent fair justice by allowing and accepting severance of the matter and a stay of proceedings.

K. Severance of Ms Reid's Matter from Mr Simon Reid's Matter

Ms Reid respectfully maintains that her AAT application must be heard and determined separately from that of Mr Simon Reid (her husband) and a stay of proceedings currently is vital to that, notwithstanding any administrative joining of their cases to date. The Tribunal has power to sever or hear matters separately where appropriate, and here severance is necessary to ensure procedural fairness and a clear focus on each Applicant's circumstances:

- Distinct Procedural Handling by the Commission: The NDIS Commission itself treated the two banning orders as separate matters. Mr Simon Reid's banning order was issued on or about 17 November 2022, whereas Ms Vida Reid's banning order was issued on 20 December 2022 prior to it being filed and logged by the applicants for a hearing despite the lack of transparency by the NDIS commission. Separate Notices of Internal Review were undertaken: for example, the Commission's delegate considered different "new information" in each case (Ms Reid's purported involvement in Dream Big was unique to her case where the person's giving the statement " Cassandra" states she lied in her statement – One wonders how much of it and all of the NDIS Commissions materials are lies and cooked to paint a certain picture). The timing and outcomes of the internal reviews also diverged. In short, while there may be some overlap in the background (both are associated with Forward Focused Group Pty Ltd),

procedurally they are two distinct decisions made on different facts and at different times. This is why a stay of proceedings during this time is vital, required, necessary and a must to ensure fair justice.

- Different Factual Allegations: The substantive allegations against Ms Reid and Mr Reid are not identical. Ms Reid's matter centrally involves allegations of financial impropriety in the management of NDIS funds and her leadership of FFG (and, as the Commission later raised, her involvement with Dream Big). Mr Reid's banning order appears to stem from separate incidents – the Applicant understands that it may relate, for instance, to complaints of harassment or improper conduct of a different nature. The tender bundle and decision records indicate that the evidence concerning Mr Reid (AAT 2023/3363) includes different witness accounts and incidents than those in Ms Reid's case. Each Applicant will thus be marshaling different evidence and arguments. Combining the hearings would risk confusion and prejudice, as evidence relevant to one might improperly color the Tribunal's view of the other. This is why a stay of proceedings must be approved by the ART.
- Avoidance of Prejudice: From a fairness perspective, severance is warranted to ensure each Applicant can present their case without undue prejudice. If heard together, there is a danger that voluminous evidence (and rhetoric) about alleged conduct of one spouse could "spill over" and influence perceptions about the other, even subconsciously. For example, testimony about Mr Reid's interactions with a particular participant (irrelevant to Ms Reid's procedural case) might nonetheless cast Ms Reid in a bad light by association. Separating the matters allows the Tribunal to consider each banning order on its own merits (and process flaws) independently and to write clearer, more tailored reasons for each.
- Efficiency and Clarity: Severance will also likely streamline each hearing. The Tribunal can focus on the specific procedural issues affecting Ms Reid, which, as outlined, include the shift in grounds on internal review, lack of disclosure, etc. In Mr Reid's case, the procedural issues might be different (for example, perhaps relating to how his response was handled, or other internal review particulars). There is minimal efficiency gain in hearing them together, since the overlap in evidence is limited; on the contrary, a joint hearing could become unwieldy as two sets of facts are examined in tandem. Separate hearings ensure clarity of the record.
- For these reasons, the Applicant asks the Tribunal to **order that the proceedings be severed**, such that AAT 2023/3361 (Vida Reid) is heard apart from AAT 2023/3363 (Simon Reid). This will not prejudice the Respondent – the Commission prepared separate decision records and will simply present the

respective material in separate forums. Any slight duplication (if, say, an overview of the FFG background is needed in both) is outweighed by the fairness and manageability that severance brings.

L. Proposed orders

For these reasons, the Applicant asks the Tribunal to **order that the proceedings be severed**, such that AAT 2023/3361 (Vida Reid) is heard apart from AAT 2023/3363 (Simon Reid). This will not prejudice the Respondent – the Commission prepared separate decision records and will simply present the respective material in separate forums. Any slight duplication (if, say, an overview of the FFG background is needed in both) is outweighed by the fairness and manageability that severance brings.

1. The Applicant respectfully seeks the following orders and relief:

1.1 Stay (protective and time-limited)

1.2 The proceeding in **2023/3361** be **stayed**

1.3 That the Tribunal **stay the operation of the banning order** against Ms Vida Reid dated 20 December 2022 (as varied on 21 April 2023) until final determination of her AAT application. This stay is necessary to prevent further prejudice to the Applicant from a decision-making process that is under challenge for illegality and unfairness.

1.4 The Respondent is to file an **affidavit** stating:
(i) the agencies to whom enquiries were made (including **AFP, ACIC, ABF** and any other Fusion Taskforce members reasonably relevant);
(ii) the **questions asked** and the **responses received**; and
(iii) whether, to the Respondent's knowledge, any **parallel law-enforcement or investigative activity** is presently on foot in relation to the subject-matter of these proceedings.

1.5 Privacy/confidentiality fairness safeguards
3) The Respondent file an **affidavit** identifying each dissemination of the Applicant's confidential materials, **by whom**, **to whom**, **when** and **for what purpose**; and confirming those materials are **quarantined** from any further non-party dissemination and will be used **only** for the purposes of this proceeding.
4) **Interim confidentiality orders** preserving the status quo until further order.

M Severance

1. Matter **2023/3361** be **severed** from matters **2023/3363** and **2023/4494**

2. That the application of Mr Simon Reid (AAT 2023/3363) be heard and determined separately from Ms Vida Reid's application, with separate timetables and hearings. The distinct nature of each case warrants independent consideration, as detailed above.

3. **Costs Reserved:** (If applicable) That the costs of the stay application be reserved or otherwise dealt with at the conclusion of the proceedings.
4. **Interpreter**
   All future listings for **2023/3361** be conducted with a **Farsi/Persian interpreter** experienced in legal proceedings.

19 **Timetable during-stay decision by ART**
8) Within **7 days** of the Respondent's, ABF and other agencies affidavit(s),The applicant be given/provided with an opportunity to read and respond to the affidavit and view it in full disclosure.

Conclusion

The Applicant reiterates that her **stay request is made in good faith to ensure fundamental fairness, not to frustrate or delay the resolution of these matters**. She remains ready to proceed with the substantive review, confined to the legal and procedural propriety of the Commission's decision and without venturing into an unnecessary merits inquiry. By granting the stay and severance, the Tribunal will ensure that Ms Reid's review can be conducted on a correct footing – addressing **whether the banning order should stand in light of the process by which it was made**, rather than being sidetracked into proving or disproving allegations that were never fairly tested at the administrative level.

The Applicant is not seeking delay for delay's sake. The applicant seeks a brief, **guard railed** stay and modest fairness directions to ensure her hearing proceeds **on a level playing field**, free from the cloud of undisclosed multi-agency activity and the practical fallout of a privacy/confidentiality mishandling. That course best serves the Tribunal's statutory objectives: a proceeding that is most importantly—**fair**.

Your Respectfully,

Vida Reid (Applicant)

Banning order dated 17th November 2022 with deadline to respond by 30th November 2022 was delivered by Australia post on 22nd December 2022 to our office and then handed to an EX Staff member of FFG Leaving us outside the office.

AUSTRALIA POST

Proof Of Delivery Browser

Article information:

Article ID / Barcode Number:	RPP210570005300244486260 9	Consignment Number:	
Scan Event Description:	Delivered	Date/Time of Scan Event:	23.12.2022 10:44:37
Product Description:	Registered Post	Merchant's Name:	
		Consignment Parcel Count:	
		Sender's Reference:	
Special Delivery Instruction:			

Addressee Information:

Name:		Company Name:	
Address Line1:		City:	
Address Line 2:		State:	
Address Line 3:		Country:	
Address Line 4:		Postcode:	

Delivery Information:

Signed For By:	B SADLER	Comment:	
Nature of Authority:	Occupant		
Signature:			